

Bihar Employees' State Insurance Medical Service Rules, 1981

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State of Bihar - Act

Bihar Employees' State Insurance Medical Service Rules, 1981

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Bihar Employees' State Insurance Medical Service Rules, 1981

Rule BIHAR-EMPLOYEES-STATE-INSURANCE-MEDICAL-SERVICE-RULES-1981 of 1981

Published on 2 May 1983

Commenced on 2 May 1983

[This is the version of this document from 2 May 1983.]

[Note: The original publication document is not available and this content could not be verified.]

Bihar Employees' State Insurance Medical Service Rules, 1981

Published vide Notification No. G.S.R. 14, dated 2.5.1983 with effect from the 9.2.1983, published in Bihar Gazette, Part 2 dated, 4.5.1983

G.S.R. 25 dated 20th May 1982, published in Bihar Gazette Part 2 dated May 26, 1982 at pages 579-596. - In exercise of the powers conferred by the proviso to Articles 309 of the Constitution of India, the Governor of Bihar is pleased to make the following Rules for the regulation of the recruitment and conditions of service of Medical Officer under the Employees' State Insurance Scheme, namely:-

Part I ? General

1.

Short title and date of commencement.

(1)

These Rules may be called the Bihar Employees' State Insurance Medical Service Rules, 1981.

(2)

They shall come into force with effect from such date as the Government may, by notification, in the Official Gazette prescribe in that behalf.

2.

Definitions.

- In these Rules unless the context otherwise requires.-

(a)

"Commission" means the Bihar Public Service Commission;

(b)

"Government" means the State Government of Bihar;

(c)

"Governor" means the Governor of Bihar;

(d)

"Service" means the Bihar Employees' State Insurance Medical Service under the Employees' State Insurance Scheme;

(e)

"Scheduled Caste" means the castes specified in Part II of the Constitution (Scheduled Castes Modification) Order, 1956;

(f)

"Scheduled Tribe" means the tribes specified in Part II of the Constitution (Scheduled Tribes Modification) Order, 1956;

(g)

"Departmental Promotion Committee" means the Departmental Promotion Committee constituted in accordance with the provisions contained in Resolution no 22576, dated the 27th November 1976 issued by the Department of Personnel and Administration Reforms, as may be amended or modified from time to time.

3.

Cadre and classification of posts.

- The Service shall consist of four grades, namely:-

(a)

Class II-

(1)

Insurance Medical Officer, General Deputy Officer including specialist.

(2)

Dental Surgeons.

(3)

Such other posts as may be created and specially included in the Bihar Employees' State Insurance Medical Service by the Governor from time to time.

(b)

Class I (Junior)-20 per cent of the total cadre-

(1)

deputy Administrative Medical Officer, Employees' State Insurance Scheme.

(2)

Deputy Superintendents of Hospitals.

(3)

Insurance Medical Officer Incharge of Dispensaries.

(c)

Class I (Senior)-12 per cent of the total cadre-

(1)

Superintendents of Hospitals.

(2)

Insurance Medical Officer Incharge of Dispensaries

(d)

Class I (Supertime Selection Cadre)-One post-Administrative Medical Officer, Employees' State Insurance Scheme.

N.B. - Specialist will be those persons who have special qualifications in a branch of Medical Science and are posted against the posts of specialist specially designated.

Part II ? Recruitment

4.

Sources of recruitment.

- Appointment to the Service shall be made by one or more of the following methods as may be decided by the Governor on each occasion:-

(a)

direct recruitment in accordance with the Rules in Part III of these Rules.

(b)

promotion in accordance with the Rules in Part IV of these Rules.

(c)

transfer from such other services or posts as are comparable with the service in status and emoluments, as may be specified by the Governor from time to time.

Note - Comparable service or post means any service or post declared and specified as such by the Governor from time to time by notification in the Official Gazette keeping in view its responsibilities, status and emoluments attached to it.

5.

Determination of vacancies.

- The Government of Bihar shall decide in each year the number of vacancies to be filled, in the different categories of service by direct recruitment and/or by promotion and/or by transfer:

Provided that appointment to the post of Administrative Medical Officer, Employees' State Insurance Scheme, Deputy Administrative Medical Officer, Employees' State Insurance Scheme shall be either by direct recruitment or by direct selection from amongst the members of the Bihar State Medical Service by inviting nomination from the State health department or by promotion from amongst members of the Service as may be decided by the Government on each occasion.

6.

Reservation of vacancies for Scheduled Castes, Scheduled Tribes and others.

- In cases of direct recruitment, such percentage of vacancies shall be reserved for candidates belonging to Scheduled Castes, Scheduled Tribes and others as may be fixed by Government from time to time in that behalf, subject to the condition that the candidates belonging to Scheduled Castes, Scheduled Tribes and other satisfy the minimum standard of suitability as may be fixed by the Commission for appointment to the posts.

Part III ? Direct Recruitment

7.

Government in the Labour and Employment Department shall, when occasion rises, intimate to the Commission the number of vacancies to be filled in Class II of the Service by direct recruitment. On receipt of such intimation the Commission shall announce the said vacancies in such manner as it thinks fit and shall invite application from candidates for such appointment.

8.

Eligibility.

(1)

Age. - (a) Unless already in government service, a candidate shall be over 21 and under 30 years of age or as the Government may prescribe in this behalf from time to time on the last date fixed by the Commission for receipt of applications. The upper age-limit may be relaxed by 5 years in case of candidates belonging to Scheduled Castes and Scheduled Tribes.

(b)

The upper age-limits may be relaxed in case of candidates of special merit and in case of repatriates from Burma/Ceylon who have migrated to India on or after the 1st June, 1963/1st November, 1964 up to 45 years of age.

(2)

Educational qualification: (a) Insurance Medical Officer-General duty Officer. - (i) A candidate must be a Medical Graduate of any recognised University in the Indian Union or abroad and must have registered himself/herself under the

Bihar Medical Act.

(ii)

A candidate must have, after passing the final M.B.B.S. Examination from any recognised University completed successfully housemanship for at least 6 months. Housemanship may not be insisted upon in respect of candidates who have passed the M.B.B.S. condensed course or old M.B.B.S. course in which housemanship was not compulsory provided he/she has been duly registered by the Registrar, Bihar Council of Medical Regulation.

(b)

Insurance Medical Officer. - Specialist. - In addition to qualifications referred to in Rule 8(2) (i) and (ii) above, the candidates must have post-graduate specialist degree in the required branch of Medical Science. Experience of working in the speciality will get weightage.

(c)

Dental Surgeon. - A candidate must be graduate in Dental Surgery of any recognised University in India or abroad and must have registered himself/herself under the Bihar Dental Act.

(3)

Health. - A candidate must be of sound health, good physique and active habits and free from organic defects or bodily infirmity and communicable diseases likely to interfere with the efficient performance of the duties of a member of the service. A candidate who is found after examination by a Medical Board not to satisfy these requirements will not be selected for appointment.

(4)

Character. - A candidate shall be of good character and shall submit to the Commission alongwith his application, certificates of character from-

(a)

the Principal, Proctor, Dean or Professor-In-charge of the department concerned of the College or University in which he last studied; and

(b)

two Gazetted Officer or respectable persons (not being relations) who are well acquainted with him in private life and unconnected with his College or University career, without prejudice to the normal verification of character and antecedents prior to his appointment.

Note - Copies of certificates required under this Rule alongwith those in support of the medical qualification and housemanship as required under Rule 8(2) of those Rules duly attested by a Gazetted Officer shall be forwarded with the application and the originals thereof shall be produced at the time of interview.

(5)

Disqualification for appointment. - (i) No person who has more than one wife living shall be eligible for appointment:

Provided that the State Government, may, if satisfied that there are special grounds for doing so, exempt any person from the operation of this requirement. The same will also apply to a female candidate, who has married a person having one or more than one wife living.

(ii)

No person shall be eligible for direct appointment to the service unless-

(a)

he is able to speak, read and write Hindi

(b)

has passed the Matriculation examination conducted by the Secondary School Examination Board or an equivalent examination or any higher examination conducted by the competent authority with Hindi as a language subject; and

(iii)

Any attempt on the part of a candidate to enlist support in his favour through persons of influence or in any other manner will disqualify him for appointment.

9.

Application.

(1)

Every candidate shall submit his application in his handwriting in the Form, copies of which may be obtained on payment, if any, from the Secretary to the Commission so as to reach him not later than such date as may be notified by

the Commission in his behalf on each occasion.

(2)

No application shall be considered unless it is accompanied by a treasury challan for Rs. 10 deposited into any Government Treasury as application fee credited to the Government of Bihar under the appropriate head of account.

The application fee shall not be accepted in any other form. In case of candidates of the Scheduled Castes or Scheduled Tribes the fee shall be reduced to one fourth. The Commission may remit the fee in case of repatriate from Burma/ Ceylon who have migrated to India on or after the 1st June, 1963/1st November, 1954. The fee paid with the application will not ordinarily be refunded. The fee once paid for any grade of service shall not be held in any circumstances for any other grade of service.

Note. - A candidate already in Government service shall not be considered unless his application is forwarded to the Commission by his Appointing Authority.

10.

Interview of candidates.

- The Commission shall consider all applications received and shall interview such candidates as they consider likely to be suitable for appointment:

Provided that the decision of the Commission as to the eligibility or otherwise of a candidate for interview shall be final.

11.

Recommendations of the Commission to Government.

- From among the candidates interviewed, the Commission shall recommend in order of merit such number of candidates as may be fixed by the Governor on each occasion. The list of such candidates shall be submitted to the Governor by such date as the Governor may fix.

12.

A candidate who is or has been declared by the Commission to be unfit for admission to any examination or guilty of impersonation or of submitting fabricated document or documents which have been tampered with or of making statements which are incorrect or false or of suppressing materials, information or of using or attempting to use unfair means for obtaining support for his candidature, may in addition to rendering himself liable to a criminal prosecution, be debarred permanently or for a specified period-

(a)

By the Commission from appearance at any interview held by them for selection of candidates; and

(b)

By the State Government from Employment under them.

13.

Final selection.

(a)

The final selection of candidates for appointment shall be made by Governor after considering the recommendations of the Commission. Selection by the Commission confers no right to appointment unless Governor is satisfied, after such enquiry as may be considered necessary, that the candidate is suitable in all respects for appointment to the service.

(b)

The recommendation of the Commission shall remain valid for one year from the date of such recommendation.

Part IV ? Recruitment by Promotion

14.

(a)

Promotion to Class-I (Junior) of the service shall be made from amongst members of Class II grade of the Service. The total strength in this category shall be 20 percent of the total cadre (officers promoted to this grade will be posted as Deputy Superintendent of Hospitals or as Insurance Medical Officer, Incharge of Employees' State Insurance Dispensaries).

(b)

Promotion to Class I (Senior) of the service shall be made from amongst members of the Class I (Junior) of the service. The total strength in this category shall be 12 ½ per cent of the total cadre (officers promoted to this grade will be posted as Superintendents of Hospitals or as Insurance Medical Officer, Incharge of Employees' State Insurance Dispensaries):

Provided that-

(i)

Such other officers already in the service of the Government as may, from time to time, be specified in this behalf by Government shall also be eligible for promotion under this Rule, if they possess a Post-Graduate qualification in any branch of Medical Science or any other degree equivalent thereto:

Provided further that no member of the service shall be eligible for promotion to a higher grade in the service unless he has been confirmed and has completed at least 5 years of service in his appointment in the Grade from which he is to be considered for promotion:

Provided further that certain number of posts to be filled by promotion shall be kept reserved for the Scheduled Tribes and Scheduled Castes according to the reservation formula prescribed by the Government from time to time.

(c)

Promotion to the post of Administrative Medical Officer, Employees' State Insurance Scheme-The post of Administrative Medical Officer shall be treated as a Selection post. Selection for promotion to this post shall be made solely on merit. Where more than one officer are of equal merit, their names shall be arranged in order of seniority.

15.

Selection Committee.

- The Departmental Promotion Committee shall make selection of persons belonging to the service and also of those on transfer from other services for promotion under Rule 5 and proviso to Rule 14:

Provided that the Commission shall invariably be consulted in those cases of promotion in which the Chairman or the Member of the Commission presiding over the Departmental Promotion Committee specifically desires them to be considered by the Commission.

16.

Preparation of lists of officers considered suitable for promotion by the Departmental Promotion Committee.

(a)

The Departmental Promotion Committee shall meet as and when occasion arises for selection of candidates.

(b)

(i)

The Departmental Promotion Committee shall after interviewing, if necessary, any candidate about whom it may have any doubt, prepare lists of candidates, who in its opinion are suitable for promotion or appointment by transfer to the service, as the case may be.

(ii)

In case of promotion the selection of candidates for inclusion in the list shall be made on merit with due regards to seniority and their names in the list shall be arranged accordingly.

In case of appointment by transfer the selection of candidates shall be based on merit and suitability and their names in the list shall be arranged in order of merit.

17.

(1)

The lists prepared by the Departmental Promotion Committee/ Commission shall be valid for one year from the date(s) of their recommendations.

(2)

The final selection of officers for promotion/appointment by transfer shall be made by the Governor after considering the recommendation of the Departmental Promotion Committee/Commission.

Part V ? Probation and Confirmation

18.

Probation.

(1)

Every person recruited to the service whether by direct recruitment or by promotion or transfer under Rule 4 shall be appointed to the service on probation.

(2)

Every person appointed under clause (a) of Rule 4 shall be on probation for a period of two years from the date he actually joins the post and those appointed under clauses (b) and (c) of Rule 4 shall be on probation for a period of one year from the date they actually join the post.

(3)

During the period of probation an officer may be required to pass such examination as may be prescribed by the Governor.

(4)

On conclusion of the period of probation, an officer shall be confirmed provided he has passed the departmental examination by the prescribed standard and is considered by the Governor suitable for confirmation in all respects.

(5)

If the work or conduct of an officer on probation is not found satisfactory in all respects, his probation may be terminated or extended, as the Government may deem proper.

Part VI ? Departmental Examination and Language Examination

19.

(1)

Every Medical Officer shall be required to pass an examination in the following subjects.

-

(i)

Hindi in Devanagri script.

(ii)

Accounts.

The syllabus is given in sub-rule (8) of this Rule.

(2)

The examination will be conducted by the Central Examination Committee constituted in the Appointment Department (now Department of Personnel and Administrative Reforms) Notification No. V/DE-109/61-A-13559, dated the 10th October, 1961 and may be held at Patna, Ranchi and at such other places as the Committee may, with the prior approval of the Government decide from time to time.

(3)

The Committee will conduct examination twice a year, the first in May/June and the second in October/November. A Medical Officer willing to appear at the examination shall send to the Administrative Medical Officer, Employees' State Insurance Scheme, Bihar, Patna not later than the 1st of May, in the case of the 1st half-yearly examination and the 1st of September, in the case of second half-yearly examination, an intimation of his intention to appear at the examination.

(4)

The Committee may lay down Rules governing the procedure to be followed in conducting the examination and to endorse a fair and uniform method of ascertaining the proficiency of the examination in each subject.

(5)

Medical Officers attending these examinations will be allowed Travelling Allowance, subject to Rule 108 of the Bihar Travelling Allowance Rules.

(6)

Every Medical Officer must pass the Departmental Examination before he is confirmed. Temporary Medical Officer shall also be permitted to appear at the Departmental Examination.

(7)

(i)

Medical Officers already in service, i.e. Medical Officers who are on deputation from the Health Department and were posted under the Scheme prior to the coming into force of these Rules and who have opted for remaining in the Scheme under Rule 24 of these Rules must pass the examination within one year from the date he opts for the service. Failure to pass the examination within the stipulated period will subject to any official orders of the Government to the contrary, entail stoppage of increments:

Provided that Medical Officers who have already passed the Departmental Examinations in course of their posting under the Health Department will be deemed to have passed the Examination under these Rules.

(ii)

Failure to pass the examination within one year of appointment at or after the publication of these Rules in the Bihar Gazette, will, subject to any special orders of the Government to the contrary, entail stoppage of increments:

Provided that stoppage of increments shall not have cumulative effect, e.g., a Medical Officer whose increments will

remain held up for not passing the Departmental Examination, will on passing the examination, be entitled to pay and allowance at the stage which he would have drawn, had his increments not been withheld.

(8)

Syllabus for the Examination-

Section I-Accounts

The Examination in Accounts will be in two papers, each carrying 100 marks. There will be only one standard with 50 per cent as the pass marks. The following course is prescribed:-

Part I ? (Without Books)-Duration 1 ½ hours.

(i)

An introduction to Indian Government Accounts and Audit (Second Edition) published in 1940, under the authority of the Auditor General of India-Chapters 6, 7, 8, 9 (paragraphs 138 to 164, 170, 179,187 and 182 only); -10, 11, 13 to 19 and 27.

(ii)

The Bihar Treasury Code, Volume I, Chapters I to IV and Chapter V (Sections I, II, and III only).

Part II ? (With Books)-Duration 1 ½ hours.

(i)

The Bihar Service Code, Chapter IV (Section I and VIII only) and Chapter VII.

(ii)

The Bihar Treasury Code, Volume I.

(iii)

Bihar Pension Rules, Chapters III, VIII (Section I), X, XI, (Sections I and II) and XII.

Note: - No Medical Officer will be held to have passed the examination in Accounts until the Collector of the District in which he/she is or was posted, furnishes a certificate that the officer has satisfactorily undergone treasury training for a period of 4 weeks. The Additional, Collector, may in unavoidable absence of the Collector furnish the above mentioned certificate. The Collector/Additional Collector will see that the certificate is sent within three days of the satisfactory completion of the period of training, to the Secretary of the Central Examination Committee.

Section II-Hindi

(a)

There will be one written paper in Hindi (in Devanagari script) carrying 200 marks. The duration of the examination will be of three hours. The marks will be distributed as below:-

(i)

Noting.....50.

(ii)

Drafting.....50.

(iii)

Translation 80; Hindi to English-40 and English to Hindi-40.

(iv)

Correction of sentences.....20.

Officer securing 50 per cent and above in the written paper will be declared to have passed by the lower standard and officers securing 60 per cent and above would be declared to have passed by the higher standard.

(b)

The viva-voce Examination in Hindi will carry 100 marks. The topics for viva-voce will be as follows:-

(i)

Conversation on general topics 40 marks.

(ii)

Testing knowledge of technical words and expressions generally used- 30 marks.

(iii)

Reading of Hindi Manuscript and their oral translation into English and reading of passages in English and their translation into Hindi..... 30 marks.

(c)

The minimum marks required for passing in the viva-voce by the lower and higher standard will be 50 per cent and 60

per cent respectively. An officer has to obtain the minimum pass marks separately in both the written examination and viva-voce for being declared to have passed in Hindi by either standard.

(d)

the following books are recommended:-

(i)

Navin Hindi Praveshika;

(ii)

Prashikshan Vyakhyanmala, Parts I and II.

(9)

Result. - The result of the examination will be published in the Bihar Gazette.

(10)

Study of Tribal Languages. -

(A)

Compulsory Examination Of tribal Languages

(i)

Any officer of the Bihar Employees' State Insurance Medical Service posted in the area mentioned below must pass the compulsory examination in the Tribal Language noted against the district in which he is posted by the lower standard, within a period of eighteen months from the date on which he is posted to that district:-

(a)

Hazaribagh.....Santhali.

(b)

Ranchi.....Mundari.

(c)

Palamau.....

(d)

Singhbhum.....Ho.

(e)

Santhal Parganas.....Santhali.

(f)

Dhanbad (only Chas and Chandankiari police-stations of Baghmara sub-division of the district of Dhanbad).....Santhali.

If he fails to do so, his increments will be stopped until such time as he passes the examination:

Provided that if an officer is prevented from passing the examination by circumstances beyond his control, Government may grant him such further time for passing the examination as they consider fit.

(ii)

An officer whose increments have been stopped for failure to pass the compulsory examination in a Tribal Language shall get his increments, as soon as he is transferred to a district outside the areas mentioned in sub-rule (10)(A)(i) above of this Rule, or as soon as he crosses the age of 50 years, whichever is earlier.

(iii)

The stoppage of increments under sub-rule (10)(A)(i) of this Rule shall not have cumulative effect.

(iv)

An officer of the service posted in Bihar outside the areas mentioned in sub-Rule (10)(A)(i) of this Rule will be eligible to appear at such optional examination in the Tribal Language if he so likes and the Rules at head B (Rules XIV to XIX) will be applicable (mentioned in sub-rule (xiv) of this Rule],

(v)

The tests which a candidate must undergo at the compulsory examination are as follows:-

(a)

he must be able to converse freely with the people of the tribe, to understand and to make him understood by them;

(b)

he must write down sentences spoken in the Tribal Language by one of the tribes and must explain the sentences correctly in English or Hindi; and

(c)

he must translate from English or Hindi into the Tribal Language sentences, not of more difficult nature than those described in clause (b) and the translation must be substantially correct and intelligible to people of the tribe in whose language it is written.

(vi)

(a)

The standard prescribed for the compulsory examination is the lower standard. In order to pass by this standard the examinee must obtain not less than 50 per cent of the marks allotted to each branch of examination and 66-? per cent of the aggregate.

(b)

The examinee shall be declared to have passed by the higher standard, if he obtains not less than 60 percent or the marks allotted to each branch of the examination and 75 per cent of the aggregate. Passing by the higher standard shall be optional for all officers. An officer who passes by the lower standard shall be eligible to re-appear at the examination for the higher standard, while an officer who passed by the higher standard shall be declared to have passed by that standard even though he has not previously passed by the lower standard.

(vii)

Notwithstanding anything contained in sub-paragraphs (v) and (vi) above the compulsory examination in the case of officer who have put in 15 years or more of service, shall consist only of an oral test in which the examinee must be able to converse freely with the people of the tribe, to understand and to make him understood by them. In this test the examinee shall be declared to have passed, if he secures not less than 50 per cent of the marks.

(viii)

If an officer is posted to one of the districts named in sub-paragraph (1) above and duly passes the examination in the tribal language prescribed for-that district, and subsequently posted to another district named in the same paragraph for which a different tribal language is prescribed, it shall not be necessary for him to pass the examination in the tribal language of the later district.

(ix)

If an officer knows one of the languages mentioned in sub-paragraph (1) of this Rule as his mother tongue and is posted to a district for which that very language has been prescribed as the compulsory tribal language, he shall not be required to pass the compulsory examination in that language. If, however, he is posted to a district for which the prescribed tribal language is different from the tribal language which he knows as his mother tongue, he shall be required to pass the compulsory examination in the tribal language of that district.

(x)

(a)

Examinations in the tribal languages shall be held once in six months, in January and June each year. The Commissioners of respective Divisions will be responsible for conducting these examinations. The examinations shall be held at the district headquarters and the District Offices shall under the supervision and control of the Commissioner, be made responsible for conducting the examination.

(b)

A Medical Officer willing to appear at the examination shall send to Administrative Medical Officer, Employees State Insurance Scheme Bihar, Patna, not latter than 1st of December, in the case of the 1st half yearly examination and the 1st of May, in the case of second half yearly examination an intimation of his intention to appear at the examination.

(c)

Medical Officers attending these examinations will be allowed Travelling allowances, subject to Rule 108 of the Bihar Travelling Allowance Rules.

(xi)

The prescribed text book in the different tribal languages are the following;

Sl. No.

Name of language

Name of prescribed text book

1.

Santhali

...

Santhali Praveshika, Parts I and II by Shri Doman Sah "Samir"
Editor of the "Hor Sambad", published by Santhal
Paharia Seva Mandal, Deoghar.

2.

Mundari

...

A Mundari Grammar with exercises by Rev. J. Hoffmann, S.J.
Catholic Mission, Ranchi.

3.

Oraon

...

Kath Ara Kath Billin, Id-U, by Dr. Christ Michael Tiga, K.B.
Kadru, Ranchi.

4.

Ho.

...

Ho Kaji by Shri Bhim Ram Sulanki, Chaibassa.

(xii)

Rewards will given as mentioned below to candidates who pass the examination mentioned in sub-paragraph (1) of this Rule within the stipulated time, subject to the condition that from all rewards granted, any rewards previously drawn for the same language will be deducted:-

Lower Standard

Higher Standard

Rs.

Rs.

Officers of Class I

750.00

1000.00

Officers of Class II

500.00

800.00

Note I. - An officer who appears only at the oral test, as provided in sub-paragraph (vii) above, shall not be entitled to any reward.

Note II. - No reward shall be given to any officer for proficiency in a second language of the same group.

The groups are-

Group I-Ho, Mundari, Santhali,

Group II-Oraon, Raj Mahal, Paharia,

Group III-Nepalese, Paharia or Khas Kura.

(xiii)

The Commissioner conducting the examination will report to Government the names of officers declared to have passed by such standard.

(B)

Rules for the Optional Study of tribal Languages

(xiv)

Officers posted outside the areas mentioned in sub-paragraph (1) above will be eligible to appear at the optional examination in the languages noted below:

Group I-Ho, Mundari, Santhali.

Group II-Oraon, Raj Mahal, Paharia.

Group III-Nepalese, Paharia or Khas Kura.

(xv)

The tests which a candidate must undergo shall be as in sub-paragraph (v) above. In addition, the examination in Nepalese, Paharia shall include a test in which the examinee must transliterate and translate into English or Hindi a paper written (not printed) form of Character of the language.

(xvi)

The standards of the optional examination and the percentage of marks required for passing by each standard shall be the same as for the compulsory examination in other tribal languages laid down in sub-paragraph (vi) of this Rule.

(xvii)

The examination shall be conducted under the control of the Commissioners of the respective divisions, who will convene local committees for the purpose.

Commissioner of Bhagalpur-

Group I-Santhali,

Group II-Rajmahal, Paharia,

Group III-Nepalese, Paharia.

Commissioner of North Chhotanagpur and Commissioner of South Chhotanagpur.

Group I-Ho and Mundari,

Group II-Oraon.

(xviii)

The rewards to be given to successful candidates will be as detailed below subject to the condition that from all rewards granted, by reward previously drawn for the same language are deducted:-

Lower Standard

Higher Standard

Rs.

Rs.

For all languages except Nepalese Paharia-

Officers of Class I

750.00

1000.00

Officers of Class II

500.00

800.00

For Nepalese Paharia-

Officers of Class I

250.00

500.00

Officers of Class II

150.00

300.00

(xix)

The Commissioner conducting the examination will report to Government the names of officers declared to have passed by each standard.

Part VII ? Section I-Training

20.

(a)

(1) Every Insurance Medical Officer shall undergo training in Treasury work and shall for the purpose be placed in charge of a district Treasury under the general supervision of the officer ordinarily Incharge of the treasury for period of not less than three weeks continuously. This shall be immediately followed by a week's training in one of the non-banking treasuries or sub-treasuries if in any of the district. Not more than four officers shall be allowed to undergo training, at a time in any treasury.

(2)

If there is no non-banking treasury or sub-treasury in the district, the fourth week will also be spent at the district treasury. The trainee should familiarise himself thoroughly with the manual named below:-

(i)
Bihar Treasury Code, Volumes I and II

(ii)
Accounts Code, Volume II.

(3)
No officer will be deemed to have passed the examination in Accounts until the Collector of the district, in which the officer is or was posted, furnishes a certificate that the officer has satisfactorily undergone his treasury training for the period of four weeks. The Additional Collector may in the unavoidable absence of the Collector furnish the above mentioned certificate. The Collector/Additional Collector will see that the certificate is signed within three days of the satisfactory completion of the period of training and sent to the Secretary to the Central Examination Committee.
Section II-Admission of Insurance medical Officer in Post-graduate Training Courses in the Medical Colleges of the State and Deputation for such Training outside the State

(b)
In order to get the Insurance Medical Officers specialised in various subjects shall be allowed/deputed to undergo Post-Graduate training courses in accordance with the following terms and conditions:-

(1)
No Medical Officer shall be deputed at the cost of State Government for Post-Graduate training outside the State if facilities for such training are available in the State.

(2)
Selection of Insurance Medical Officers to be deputed for Post-Graduate Training/Advanced/Higher specialised training both inside and outside the State, but within India, will be made strictly on merit by the Departmental Screening Committee which shall consist of-

Chairman:

(a)
Principal Secretary/Secretary, Labour and Employment Department.

Members:

(b)
Administrative Medical Officer, Employees' State Insurance Scheme, Bihar, Patna.

(c)
Deputy Administrative Medical Officer, Employees' State Insurance Scheme, Bihar.

(3)
Insurance Medical Officer for higher i.e. advanced/further specialised training abroad will also be selected by the Screening Committee as mentioned in sub-clause (2) above on the basis of merit by the said Committee.

(4)
(i)
Insurance Medical Officer desirous to go for Post-Graduate Training and Study may be allowed to go for the same at their own cost after completing 3 years of service in the Scheme. They will be allowed leave as permissible under Rules framed by the Government from time to time for the period of their training and study.

(ii)
Benefit of relevant leave Rules of the Bihar Service Code may also be allowed to Insurance Medical Officers after completion of one year of service to prosecute higher studies at their own cost.

(5)
(i)
Insurance Medical Officer selected for higher/advanced/specialised training outside the State but within India at State cost may be allowed to draw their full pay and dearness allowance without Employees' State Insurance Allowance (Domiciliary Visit Allowance, etc.). The period of their deputation will be treated as duty under Rule 14(c)(i) of the Bihar Service Code for all purposes. They may also be allowed to draw T.A. as on tour for the journey both ways for the purpose.

(ii)
They may also be allowed to draw compensatory allowance as may be decided by the Government during the period of their training.

(iii)

The admission, tuition and examination fees charged by the institution may be re-imbursed to the deputationist, on production of required vouchers to that effect.

(6)

Insurance Medical Officers selected for higher/advanced/specialised study abroad as State Sponsored candidates under any fellowship/scholarship or under any foreign aid programmes will be allowed deputation-cum-special leaves as admissible from time to time.

(7)

Insurance Medical Officers, selected for Post-Graduate Training outside the State at the State Cost in the subjects in which no training facilities are available inside the State may be allowed the same concession as has been provided for the Insurance Medical Officers deputed for higher/advanced and specialised training under Rule 20(b)(5) of these Rules except the compensatory allowance.

(8)

Insurance Medical Officers selected for Post-Graduate study/higher advanced or specialised study outside the State at State cost shall have to execute necessary bond/the agreement to the effect that they will serve the Government for a minimum period of five years after completion of the course. Similarly, the Insurance Medical Officers who undertake such study at their own cost by availing of leave under Rule 20(b)(4) of these Rules shall be required to give in writing an undertaking to the effect that they will serve the Government for a minimum period of three years after completion of the study and training, if Government so desires.

(9)

Insurance Medical Officers selected for training at the State cost inside the State will have to credit to the Government with such funds or amounts received by them as stipend or scholarship from any other source. Similarly the Insurance Medical Officers who are selected for Post-Graduate Study/advanced specialised training outside the State at the State cost shall not receive any amount from any other source which has not been sanctioned to them in their deputation orders, without prior permission of the State Government.

(10)

In case of candidates deputed outside the State and outside India, who discontinue the course for any reason the entire period i.e., the period with effect from the date of deputation till the date of joining the duty shall be treated as extraordinary leave and all the expenditure incurred in connection with their deputation for training shall be recovered in full from their pay.

Part VIII ? Pay, Efficiency bar, Seniority

21.

Pay.

(1)

There shall be the following time scales of pay for the members of the service:-

(a)

Administrative Medical Officer, Employees' State Insurance Scheme Time Scale of pay admissible to Super-time selection Grade Officer in the Health Department (Rs. 1,855-55-2,130).

(b)

Class I (Senior) Superintendents of Hospitals and Insurance Medical Officer, Incharge of Employees' State Insurance Dispensaries. Time Scales of pay Admissible to Senior Selection Grade Officer in the Health Department (Rs. 1,400-50-1,800-55-2020).

(c)

Class I (Junior) Deputy Administrative Medical Officer, Employees' State Insurance Scheme/Deputy Superintendents of Hospitals and Insurance Medical Officer Incharge of Employees' State Insurance Dispensaries (Rs. 970-35-1,110-40-1,190-35-1,325).

(d)

Class II.-(1) Insurance Medical Officers (General Duty Officers Specialists).

(2)

Dental surgeons (Rs.610-30-670-E.B.-30-910-E.B.-35-1,155). Besides the pay, the following financial and other benefits shall be provided to them:-

(i)

Administrative Medical Officer:, Employees State Insurance Scheme:-

(a)

Other benefits-Fees, if any granted by the Employees' State Insurance Corporation from their fund.

(b)

Conveyance allowance as admissible from time to time.

(ii)

Deputy Administrative Medical Officer, Employees' State Insurance Scheme:-

(a)

Other benefits-Fees, if any granted by the Employees' State Insurance Corporation from their own fund.

(iii)

Superintendents and Insurance Medical Officer Incharge Employees' State Insurance Dispensaries-

(a)

Special pay-Rs. 100 per month or the amount as fixed from time to time (for the officers posted in dispensary only).

(b)

Domiciliary Visit Allowance as admissible (for Medical Officers posted in dispensary only).

(c)

Rent free accommodation or house rent in lieu thereof as admissible from time to time.

(d)

Other benefits Fees, if any, granted by the Employees' State Insurance Corporation from their fund.

(iv)

Deputy Superintendent and Insurance Medical Officer Incharge of Employees' State Insurance Dispensary-

(a)

Special Pay-Rs. 75 per month to the officer having postgraduate qualification and are appointed to the post of Specialist.

(b)

Special pay-Rs. 100 per month or the amount as fixed from time to time (for the officer posted as Incharge of the dispensary only).

(c)

Domiciliary Visit Allowance-As admissible. (For Medical Officers posted in dispensary only).

(d)

Rent free accommodation or house rent in lieu thereof as admissible from time to time.

(e)

Other benefits-Fees, if any, granted by the Employees' State Insurance Corporation from their fund.

(v)

Insurance Medical Officer including Specialist Class II officer, -

(a)

Special pay-Rs. 100 per month or the amount as fixed from time to time.

(b)

Special Pay-Rs. 75 per month to those officers having Postgraduate qualification and are appointed to the post of specialist.

(c)

Domiciliary Visit Allowance-As admissible (only for officer posted in dispensary).

(d)

Rent free accommodation or house rent in lieu thereof as admissible from time to time.

(e)

Other benefits-Fees, if any, granted by the Employees' State Insurance Corporation from their own fund.

(vi)

Dental Surgeons-Rent free accommodation or house rent in lieu thereof as admissible from time to time.

22.

Crossing of efficiency bar.

(a)

No member of the service shall be allowed to cross the first efficiency bar of his scale of pay unless the Governor is satisfied that the officer is fit to perform the works ordinarily expected of an officer of his rank and status.

(b)

No member of the service shall be allowed to cross the Second Efficiency Bar of his scale of pay unless-

(i)

his work can be described as good i.e., considerably above a standard which is adequate to secure him approbation;

(ii)

he has shown definite merit and integrity in his work.

(c)

When a member of the service has not been allowed to cross the efficiency bar which he would have been entitled to do by virtue of his seniority, he will be informed of the defects in his work or conduct which have led to the stoppage of his advancement on the time scale. The officer under whom he is working will unless the Government otherwise direct, thereafter report annually whether his work or conduct shows such an improvement as to justify reconsideration of his case:

Provided that where stoppage at the efficiency bar will entail stoppage of increments with cumulative effect, the procedure laid down in Rule 55-A of the Civil Services (Classification, Control and Appeal) Rules shall be followed before such a decision is taken.

23.

Seniority.

(1)

The seniority of an officer appointed to the service under clause (a), (b) and (c) of Rule 4 of these Rules in any year shall be in the following order:-

(i)

Officers appointed to the service by promotion under clause (b) of Rule 4 shall rank inter se in the order in which their names are arranged by the Commission.

(ii)

Officers appointed to the service by transfer from other services or posts under clause (c) of Rule 4 rank inter se in the order in which their names are arranged by the Commission; and

(iii)

Officers appointed to service by means of advertisement and interview under clause (a) of Rule 4 shall ranked inter se in the order in which their names are arranged by the Commission.

(2)

seniority as a specialist in a particular branch will be determined on the length of service rendered by the incumbent in his speciality under the Scheme.

Part IX ? General

24.

Option to remain in the Scheme.

- Insurance Medical Officers, who are on deputation from the Health Department and are posted under the Scheme prior to the coming into force of these Rules, shall be given chance to option if they would like to remain in the scheme and on receipt of their option in favour of their continuance they shall be deemed to have been recruited under the corresponding provisions of these Rules. The services of other deputed Medical Officers, who would not like to remain in the Scheme shall be returned to the Health Department:

Provided that the Health Department shall invariably be consulted before an officer on deputation is finally absorbed in the service.

25.

Condition of service to be regulated by the general law or Rules.

- In respect of all matters, not specially provided for in these Rules in respect of the condition of service of the Medical Officers under the employees' State Insurance Scheme, will be regulated by the general law or Rules framed or orders issued by the Government from time to time.

26.

Interpretation.

- If any question arises relating to the interpretation of these Rules, it shall be referred to the Government whose decision shall be final.

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